

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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KRIS ARROYO,

Plaintiff,

-against-

CITY OF NEW YORK, SERGEANT JOSE
BAEZ, Shield #2864, POLICE OFFICER
VLAD GREEN, Shield #23075, POLICE
OFFICER HECTOR TORRES, and JOHN
and JANE DOES 1 through 10, individually
and in their official capacities, (the names John
and Jane Doe being fictitious, as the true names
are presently unknown),

Defendants.

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Defendants having offered pursuant to Rule 68 of the Federal Rules of Civil Procedure to allow judgment to be taken against the City of New York in this action for the total sum of Seven Thousand Five Hundred and One (\$7,501.00) Dollars, plus reasonable attorneys' fees, expenses and costs to the date of this offer for Plaintiff Kris Arroyo's federal claims and Plaintiff Kris Arroyo having accepted said offer; it is

ORDERED and ADJUDGED that judgment is hereby entered pursuant to Rule 68 of the Federal Rules of Civil in favor of Plaintiff Kris Arroyo and against Defendant City of New York in the total amount of Seven Thousand Five Hundred and One (\$7,501.00) Dollars, and costs to the date of this offer for Plaintiff Kris Arroyo's federal claims.

In accordance with the offer of judgment, this judgment is in full satisfaction of all federal and state law claims or rights that Plaintiff Kris Arroyo may have to damages, or any other form of relief; arising out of the alleged acts or omissions of the Defendants, or any official,

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employee, or agent, either past or present, of the City of New York, or any agency thereto, in connection with the facts and circumstances that are the subject of this action; this judgment is entered for the purposes specified in Rule 68 of the Federal Rules of Civil Procedure and is not be construed for as an admission of liability by any Defendant, or any official, employee, or agent of the City of New York, or any agency thereof; nor is it and admission that Plaintiff Kris Arroyo has suffered any damages; this judgment will act to release and discharge all Defendants; their successors or assigns, and all past and present officials, employees, representatives, and agents of New York City Police Department and the City of New York, or any agency thereof, from any and all claims that were or could have been alleged by Plaintiff Kris Arroyo in the above-referenced action; further, Plaintiff Kris Arroyo waives rights to any claim for interest on the amount of the judgment and agrees that payment of Seven Thousand Five Hundred and One (\$7,501.00) Dollars within 90 days of the date of acceptance of the offer shall be reasonable time for such payments, unless Plaintiff received medical treatment in connection with the underlying claims in this case for which Medicare has provided, payment in full or in part; if Plaintiff Kris Arroyo is a Medicare recipient who received medical treatment in connection with the claims in this case, the ninety (90) day period for payment shall start from the date Plaintiff submits to Counsel for Defendants a final demand letter from Medicare; Plaintiff Kris Arroyo further agrees to resolve any claim that Medicare may have for reimbursement of conditional payments it has made as a secondary payer, and a Medicare Set-Aside Trust shall be created, if required by 42 U.S.C. § 1395y(b) and 42 C.F.R. §§ 411.22 through 411.26 and Plaintiff further agrees to hold

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harmless Defendants regarding any past and/or future Medicare payments, presently known or unknown, made in connection with this matter.

Dated: Brooklyn, New York
August 15, 2013

Douglas C. Palmer
Clerk of Court

by: /s/ Janet Hamilton
Deputy Clerk